

U.S. Department
of Transportation

Research and
Special Programs
Administration

DOT-E 9951
(FIRST REVISION)
(CORRECTED COPY)

400 Seventh Street, S.W.
Washington, D.C. 20590

OCT 31 1988

1. General Defense Corporation, York, Pennsylvania, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of class A explosives for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes non-DOT specification packaging for explosive projectiles, and provides no relief from any regulation other than as specifically stated.
2. BASIS. This exemption is based on General Defense Corporation's application dated March 8, June 7 and July 22, 1988, submitted in accordance with 49 CFR 107.103 and supplemental letter dated August 16, 1988.
3. HAZARDOUS MATERIALS (Descriptor and class). Explosive projectiles (155 mm, M483A1 rounds), (EX-8103042A); (155mm, BGD155C rounds) (EX-8808011) and (155mm, HE, M549 rounds), (EX-8808002) class A explosives.
4. PROPER SHIPPING NAME (49 CFR 172.101). Explosive projectile.
5. REGULATION AFFECTED. 49 CFR 173.56(b) and (c)(1), 173.86(b).
6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight.
7. SAFETY CONTROL MEASURES. Packaging prescribed is palletization, 8 rounds per pallet, in accordance with applicable Department of Defense (DOD) outloading drawings identified as ARDC 8837839 on file with the application in the Office of Hazardous Materials Transportation.
8. SPECIAL PROVISIONS.
 - a. Shipment must:
 1. Be prepared and offered to the carrier in accordance with DOD safety requirements.
 2. Originate at the Kansas Army Ammunition Plant, Parsons, Kansas, destined for a port of export or a proving ground.
 3. Be made in carload or truckload lots.
 4. Any fuzes in this ammunition must be of the safe and arm type and be in the safe position during transportation.
 - b. In lieu of 49 CFR Part 107, Appendix B(1), each motor vehicle must be conspicuously marked on the right side, near the front, in letters at least 2 inches high, "DOT-E 9951".
 - c. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Transportation as soon as practicable.

10. EXPIRATION DATE. May 31, 1989.

Issued at Washington, D.C.:

OCT 31 1988

504 Alan I. Roberts
Director

(DATE)

Office of Hazardous Materials Transportation

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C., 20590. Attention: Exemptions Branch.

Dist: USCG, FRA, FHWA